

Section 7

CFSR Round 4 Structural Integrity Analysis

Version 2.0 — Preliminary Draft

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SECTION 7 — CFSR ROUND 4 STRUCTURAL INTEGRITY ANALYSIS

(Current Federal Review Methodology — "What the current review process may fail to detect")

Version 2.3 — June 5, 2026

[NOTE: Superseded by section7_petition_revised.txt]

IDENTIFIER CONVENTIONS FOR THIS SECTION

To prevent confusion between the petition's analytical framework identifiers and the CFSR Round 4 source document reference system, the following conventions apply throughout Section 7:

EO-## Executive Order (e.g., EO-14359, EO-14379)

Presidential directives governing ACF/Children's Bureau policy.

Cited as A5-EO-14359 and A5-EO-14379 in the matrix.

Not part of the R4D or TB numbering systems.

TB-## CFSR Technical Bulletin (e.g., TB-12, TB-13A, TB-14)

Federal administrative bulletins issued by ACF/Children's Bureau.

Cited as A5-TB-12, A5-TB-13A, A5-TB-14 in the matrix.

R4D-## CFSR Round 4 source document (R4D-01 through R4D-47)

Internal forensic reference IDs for publicly accessible federal documents cited by URL in Section 7.1.1.

R4D-43 through R4D-47 are documents previously missing from the set, now formally assigned identifiers in this version.

A## Petition attachments (e.g., A5 = this section's filed document)

The only identifier system that corresponds to petition attachments.

The CFSR Round 4 source documents (R4D-01–R4D-47, TB-12–TB-14, EO-14359, EO-14379) are cited collectively as Section 7.

Individual R4D documents are not separately attached — they are publicly accessible federal documents cited by URL in Section 7.1.1.

Domain A–H Petitioner's analytical risk domain framework (Section 5.1)

F1–F13 Petitioner's deficiency classification framework (Section 5.2)

PREFATORY NOTE ON SECTION SCOPE

Unlike Section 6, which documents completed findings from three prior federal review cycles, this section analyzes the structural design of an ongoing federal review process and the administrative modifications made to that process during its active execution.

The analytical argument in this section is not that Round 4 has found failure. It is threefold:

- (1) The Round 4 self-assessment methodology contains structural design characteristics that may limit its capacity to independently detect the persistent deficiencies documented in Sections 6, 9, 11, and 12.
- (2) The federal agency responsible for administering this review has itself acknowledged, in a published federal document (TB-14), that the CFSR process may not accurately capture system performance — and has responded by reducing the primary accountability mechanism available to states with documented multi-cycle failure records.
- (3) For Iowa specifically — a state that failed 100% of performance outcomes in Round 3, experienced a +57.7% increase in maltreatment in care during that cycle, and continues to perform statistically worse than national benchmarks in Round 4 SWDI data — the structural limitations of Round 4 and the accountability reductions introduced by TB-14 combine to eliminate the federal oversight mechanism that would otherwise have generated independent corrective pressure.

These three conditions together constitute the evidentiary basis for the conclusion that independent state audit jurisdiction under Iowa Code § 11 is not duplicative of federal oversight — it fills an accountability gap that the federal framework has now explicitly created.

This conclusion is further reinforced by two executive directives — EO-14359 ("Fostering the Future," November 13, 2025) and EO-14379 ("Great American

Recovery Initiative," January 2026) — both of which call for improved data transparency and federal-state coordination in child welfare. Iowa Code § 11 audit jurisdiction is structurally consistent with both directives and provides the state-level verification mechanism each calls for.

7.1 ATTACHMENT A5 — CFSR ROUND 4 STRUCTURAL INTEGRITY ANALYSIS

Primary Sources: Federal CFSR Round 4 documents cited as R4D-01 through R4D-47, Technical Bulletins TB-12, TB-13A, and TB-14, and Executive Orders EO-14359 and EO-14379. Full index at Section 7.1.1. All R4D and TB sources are publicly available federal documents. URLs provided in index.

7.1.1 CFSR ROUND 4 SOURCE DOCUMENT INDEX

(Internal Forensic Reference Register — Not Petition Attachments)

These documents are cited as source evidence within Section 7. They are referenced by EO-##, TB-##, and R4D-## identifiers throughout this section. R4D and TB documents are publicly accessible federal documents and are NOT part of the A1–A43 petition attachment system. The analysis derived from these documents is filed as Section 7.

Matrix reference: All entries below correspond to rows with Att_No = A05 in the Attachment Metadata Matrix (AttachmentMetadata_v21).

EXECUTIVE ORDERS

EO-14359 Executive Order 14359 — "Fostering the Future"

Signed: November 13, 2025

Directed ACF to improve "collection, publication, utility, and transparency of State-level child welfare data" and to "expand and expedite child welfare data publication."

TB-14 was issued as "the first phase of delivering on this call to action."

Matrix ID: A5-EO-14359

URL: <https://www.federalregister.gov/executive-order/14359>

Petition Domains: Domain A — Funding Authorization & Federal

Compliance; Domain E — Outcomes; Domain G —

Federal Oversight History; Domain H — Data

Integrity & Auditability

Petition F-Codes: F5 — Repeat Findings Not Corrected;

F13 — Policy–Practice Implementation Gap

Note: Iowa Code § 11 audit request is structurally consistent with EO-14359. Independent audit produces the data transparency this order mandates. See Section 7.1.6.

EO-14379 Executive Order 14379 — "Great American Recovery Initiative"

Signed: January 2026

Calls for improved coordination between federal agencies on Substance Use Disorder (SUD) treatment and child welfare outcomes; expanded MOUD access; family preservation as an explicit policy goal alongside SUD treatment.

Matrix ID: A5-EO-14379

URL: <https://www.federalregister.gov/executive-order/14379>

Petition Domains: Domain A — Funding Authorization; Domain C — Decision-Making; Domain E — Outcomes & Disparities; Domain F — Workforce & Internal Accountability

Petition F-Codes: F1 — Inadequate Safety Assessment;

F8 — Service Gaps / Access Failures;

F13 — Policy–Practice Implementation Gap

Note: Iowa's methamphetamine-dominant removal profile sits at the structural gap in EO-14379 — federal SUD policy focuses on opioid-pathway MAT (buprenorphine/methadone/naltrexone) for which no equivalent evidence-based framework exists for methamphetamine. Iowa's CAPTA 55% Safe Plan failure rate (A11, p.7) and Crossroads federal SUD grant diversion (A26) are both implicated. See

Section 7.1.6.

TECHNICAL BULLETINS

TB-12 CFSR Technical Bulletin #12 (2020)

Announced Round 4; high-level overview; scheduling framework.

Matrix ID: A5-TB-12

URL: <https://www.cfsrportal.acf.hhs.gov> [portal bulletins section]

Petition Domain: Domain G — Federal Oversight History &

Corrective Action Response

Petition F-Codes: F5 — Repeat Findings Not Corrected;

F13 — Policy–Practice Implementation Gap

Note: Establishes Round 4 as continuation of a process that had already produced declining conformity across two prior rounds without structural design modification.

TB-13A CFSR Technical Bulletin #13A — Amended (2022)

Primary measurement authority for Round 4 SWDI national performance values. Establishes RSP methodology, sampling framework, and national performance standards against which Iowa is measured in R4D-21. The SWDI FAQ (R4D-05) cannot be fully understood without TB-13A as its foundational policy basis.

Matrix ID: A5-TB-13A

URL: <https://ccwip.berkeley.edu/cwscmsreports/>

CFSR_R4_TechnicalBulletin_13A_Final.pdf

Petition Domains: Domain H — Data Integrity & System Auditability;

Domain G — Federal Oversight History

Petition F-Codes: F4 — Documentation & Data Integrity Deficiency;

F5 — Repeat Findings Not Corrected;

F13 — Policy–Practice Implementation Gap

Note: TB-14 suspends the PIP measurement framework this bulletin establishes. R4D-37 (p.11) ties financial withholding authority to this framework — TB-14 removes the measurement basis for that withholding determination.

TB-14 CFSR Technical Bulletin #14

Publication date: December 19, 2025 | Current as of: May 27, 2026

*** THE MOST SIGNIFICANT DOCUMENT IN THIS SET ***

ACF administrative acknowledgment of CFSR structural failure;

PIP suspension mechanism; "A Home for Every Child" pilot authority.

Issued in response to EO-14359 ("Fostering the Future").

Matrix ID: A5-TB-14

URL (ACF): <https://acf.gov/cb/training-technical-assistance/cfsr-technical-bulletin-14>

URL (portal): <https://www.cfsrportal.acf.hhs.gov/document/>

download/WdZJrn

Petition Domains: Domain G — Federal Oversight History;

Domain A — Funding Authorization & Federal

Compliance;

Domain E — Outcomes, Incentives & Systemic

Disparities

Petition F-Codes: F5 — Repeat Findings Not Corrected (primary);

F13 — Policy–Practice Implementation Gap;

F7 — Fiscal Control & Funding Compliance

TB-14 ACF Webinar: A Home for Every Child Initiative and CFSR TB-14

(Webinar) (January 2026)

Webinar slides and recording available at CFSR portal.

Matrix ID: A5-TB-14-WEBINAR

URL: <https://www.cfsrportal.acf.hhs.gov/resources/round-4-resources/2025-2026/acf-webinar-home-every-child-initiative-and-cfsrtechnical>

Petition Domain: Domain G — Federal Oversight History

CORE FRAMEWORK & POLICY DOCUMENTS

R4D-01 Requirements and Benefits of State-Led Reviews (2022)

Matrix ID: A5-R4D-01

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/gnaOyv>

Petition Domains: Domain G; Domain C

Petition F-Codes: F5; F13

R4D-10 Round 4 CFSR General Fact Sheet (2025)

Matrix ID: A5-R4D-10

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/OqlgLB>

R4D-16 CFSR Process Graphic (2025)

Matrix ID: A5-R4D-16

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/KgWBMO>

R4D-37 CFSR Round 4 Procedures Manual (2025) — Primary operational authority

Matrix ID: A5-R4D-37

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/oDXwKV>

Petition Domains: Domain G; Domain C; Domain H

Petition F-Codes: F4; F5; F12; F13

R4D-38 Quick Reference Items List (2022)

Matrix ID: A5-R4D-38

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/XPqjgN>

REVIEWER INSTRUMENTS & GUIDANCE

R4D-03 Case-Related Interview Guides (2025)

Matrix ID: A5-R4D-03

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/gLMYON>

R4D-09 Federal Expectations for Rating Cases (2025)

"Circumstances beyond control" exception standard.

Matrix ID: A5-R4D-09

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/vMYBdx>

Petition Domains: Domain E; Domain C

Petition F-Code: F13

R4D-11 OSRI Item 12 Reviewer Brief — "Concerted Efforts" Standard (2025)

Matrix ID: A5-R4D-11

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/zGXjrV>

Petition Domains: Domain E; Domain C

Petition F-Code: F13

R4D-13 OSRI Item 2 Reviewer Brief (2022)

Matrix ID: A5-R4D-13

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/dDgdZW>

Petition Domains: Domain E; Domain C

Petition F-Code: F13

R4D-14 In-Home vs. Foster Care Talking Points (2025)

Matrix ID: A5-R4D-14

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/vXMdya>

Petition Domain: Domain C

Petition F-Code: F13

R4D-15 OSRI Quality Assurance Guide (2025)

Matrix ID: A5-R4D-15

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/EBVRaD>

Petition Domain: Domain G

Petition F-Code: F12

R4D-41 No Narrative Writing Guide (2022) — "Conclude-first" structure

Matrix ID: A5-R4D-41

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/NndjgR>

Petition Domains: Domain G; Domain F

Petition F-Codes: F4; F13

STATEWIDE ASSESSMENT & DATA SYSTEMS

R4D-19 Guiding Principles (2022)

Matrix ID: A5-R4D-19

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/xEeKGR>

R4D-20 Statewide Assessment Template (2022) — State-authored self-reporting

Matrix ID: A5-R4D-20

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/ZvoePK>

Petition Domains: Domain G; Domain H

Petition F-Code: F13

R4D-02 Data Evidence Selection Guidance (2025)

Matrix ID: A5-R4D-02

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/RdqPVW>

Petition Domain: Domain H

DATA & METRICS

R4D-05 SWDI FAQ — RSP vs. Observed Performance (2022)

*** KEY DOCUMENT ***

Explicit statement: "RSP has no meaning relative to the state's observed performance." (p.6)

Matrix ID: A5-R4D-05

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/NxyBrq>

Petition Domains: Domain H; Domain E

Petition F-Codes: F4 (primary); F13

R4D-21 SWDI Workbook (March 2026) — Current Iowa performance data

Iowa: recurrence WORSE than national; permanency WORSE than national.

Matrix ID: A5-R4D-21

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/gkRWLo>

Petition Domains: Domain E; Domain H

Petition F-Code: F5 (primary)

R4D-22 Data Dictionary (2022)

Matrix ID: A5-R4D-22

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/xXoGOg>

R4D-42 Round 3 National Performance Data (2023)

Iowa: maltreatment in care +57.7% (p.23); recurrence +30.9% (p.25)

Matrix ID: A5-R4D-42

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/zpxvWV>

Petition Domains: Domain E; Domain G

Petition F-Codes: F5 (primary); F10

SAMPLING & CASE SELECTION

R4D-04 Sampling Frames (2022)

Matrix ID: A5-R4D-04

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/pXqakB>

Petition Domains: Domain C; Domain H

Petition F-Code: F13

R4D-23 Site Selection Proposals (2025)

Matrix ID: A5-R4D-23

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/pXqaKn>

Petition Domains: Domain G; Domain C

Petition F-Code: F13

R4D-35 Case Elimination Guidance (2024)

No minimum engagement standard before exclusion.

Matrix ID: A5-R4D-35

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/DpOvRV>

Petition Domains: Domain C; Domain H

Petition F-Codes: F3; F13

STAKEHOLDER ENGAGEMENT

R4D-06 Youth Engagement Brief (2025)

Matrix ID: A5-R4D-06

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/NVqxXe>

R4D-07 Caseworker Fact Sheet (2025)

Matrix ID: A5-R4D-07

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/RnkvOB>

R4D-08 Judicial Fact Sheet (2025)

Matrix ID: A5-R4D-08

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/YRZOyG>

R4D-28 Stakeholder Fact Sheet — Community (2025)

Matrix ID: A5-R4D-28

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/ZNXdkZ>

R4D-29 Stakeholder Fact Sheet — Parents (2025)

Matrix ID: A5-R4D-29

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/rXqdvd>

R4D-30 Stakeholder Fact Sheet — Youth (2025)

Matrix ID: A5-R4D-30

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/NgDwMD>

R4D-31 Stakeholder Fact Sheet — Officials (2025)

Matrix ID: A5-R4D-31

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/zGnGpL>

R4D-32 Stakeholder Fact Sheet — Staff (2025)

Matrix ID: A5-R4D-32

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/yGkNWD>

R4D-33 Stakeholder Fact Sheet — Judicial (2025)

Matrix ID: A5-R4D-33-JUDICIAL

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/EZEPDL>

R4D-34 Stakeholder Fact Sheet — Tribal (2025)

Matrix ID: A5-R4D-34

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/qOZNJM>

R4D-39 Stakeholder Interview Guide (2025)

***** KEY DOCUMENT *****

Explicit statement: interviews "may not be required." (p.1)

Matrix ID: A5-R4D-39

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/jaNODY>

Petition Domains: Domain G; Domain B

Petition F-Codes: F11; F13

OPERATIONAL & LOGISTICS

R4D-12 Local Site Coordinator Toolkit (2024)

***** KEY DOCUMENT *****

State arranges workspace, interviews, and meals for federal review team. (p.2–3, p.7)

Matrix ID: A5-R4D-12

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/KxOVPw>

Petition Domains: Domain G; Domain F

Petition F-Codes: F11; F12

R4D-26 State Planning Package (2024)

Matrix ID: A5-R4D-26

URL: <https://www.cfsrportal.acf.hhs.gov/resources/round-4-resources/cfsr-round-4-process> [State Planning Package section]

Includes:

- CFSR Logistical Support Fact Sheet (2024): supplements R4D-12
- Equipment Fact Sheet (2024): state-managed equipment for federal team

Petition Domains: Domain G; Domain F

Petition F-Code: F12

SPECIALIZED GUIDANCE

R4D-17 15/22 Month TPR Rule (2022)

Matrix ID: A5-R4D-17

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/VGIXYr>

Petition Domain: Domain D

Petition F-Code: F3

R4D-33 Legal-Judicial Specialist Role (2025)

(Legal) Role is encouraged but NOT mandatory.

Matrix ID: A5-R4D-33-LEGAL

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/ekoJgX>

Petition Domain: Domain D

Petition F-Code: F13

R4D-40 Legal-Judicial Specialist Role Part 2 (2025)

Matrix ID: A5-R4D-40

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/ajRpog>

Petition Domain: Domain D

Petition F-Code: F13

R4D-36 PIP Development Guidance (2025)

Matrix ID: A5-R4D-36

URL: <https://www.cfsrportal.acf.hhs.gov/document/download/pkKgqv>

Petition Domain: Domain G

Petition F-Code: F5

PREVIOUSLY MISSING — NOW ASSIGNED R4D-43 THROUGH R4D-47

R4D-43 State-Led CFSR Case Review Criteria (2025)

SLR qualification criteria — distinct from R4D-01.

Matrix ID: A5-R4D-43

URL: <https://www.cfsrportal.acf.hhs.gov/resources/round-4-resources/cfsr-round-4-process> [State-Led Review section]

Petition Domains: Domain G; Domain C

Petition F-Code: F13

R4D-44 "Understanding the CFSRs" Infographic (2025)

Public-facing overview. Contrast document: compare against

TB-14 internal admission of measurement failure.

Matrix ID: A5-R4D-44

URL: <https://www.cfsrportal.acf.hhs.gov/resources/round-4-resources>

Petition Domain: Domain G

Note: Relevant to F4 — gap between public representation and internal acknowledgment of CFSR measurement failure.

R4D-45 Young People with Lived Experience Brief (2025)

Defines adequate engagement; benchmarks R4D-39 optional stakeholder verification.

Matrix ID: A5-R4D-45

URL: <https://www.cfsrportal.acf.hhs.gov/resources/round-4-resources>

Petition Domains: Domain G; Domain E

R4D-46 Spotlight Series 1–4: Legal-Judicial Reports (Round 3)

Round 3 performance in legal/judicial outcome areas.

Matrix ID: A5-R4D-46

URL: <https://www.cfsrportal.acf.hhs.gov/resources/round-4-resources>

Petition Domains: Domain D; Domain G

Petition F-Codes: F5; F11

R4D-47 Court Improvement Program / CFSR Infographic (2025)

CIP/CFSR overlap — judicial interface documentation.

Matrix ID: A5-R4D-47

URL: <https://www.cfsrportal.acf.hhs.gov/resources/round-4-resources>

Petition Domain: Domain D

Petition F-Code: F11

7.1.2 FEDERAL SELF-DISCLOSURE: THE TB-14 ADMISSION

(Threshold 1 — Documented Finding)

On December 19, 2025, ACF published TB-14 (A5-TB-14) in response to Executive Order 14359 (A5-EO-14359, "Fostering the Future"), signed November 13, 2025.

TB-14 contains the following statements, quoted verbatim:

"In 25 years, no states have been found to be operating in substantial conformity with all outcome measures and systemic factors during an initial or subsequent review; consequently, every state has been placed on a required

PIP."

"Data across CFSR rounds show that no state has ever passed all seven performance outcomes and all seven systemic factors."

"The degree of substantial conformity has seemingly declined over time:

In Round 1, states met an average of 5.4 measures (out of 14) per state.

In Round 2, this declined to 4.4 measures per state, with 27 states losing ground, 12 states staying even, and 12 states improved.

In Round 3, this further declined to 2.8 measures per state, with 32 states losing ground, 13 states staying even, and 5 states improved."

"Unfortunately, these trends appear no different midway through Round 4. At a minimum, performance is stagnant."

"When viewed alongside other available data, the CFSR results appear inconsistent with what many believe to be real-world improvements in child

welfare practice. This disconnect raises important questions about the CFSR's ability to accurately capture system performance and to produce meaningful and well-measured change."

"If the goal is sustainable performance improvement, then the CFSRs may not be effectively assessing state child welfare agency performance in ways that are truly indicative of promoting child safety, permanency, and well-being."

(Source: TB-14, A5-TB-14, ACF/Children's Bureau, December 19, 2025)

Analytical notation — Threshold 1 (Documented Finding):

These statements constitute ACF's own published acknowledgment that:

- (a) The CFSR has failed to produce substantial conformity in any state in 25 years of operation.
- (b) Conformity rates have declined in every completed round.
- (c) The CFSR may not accurately measure child welfare system performance.
- (d) The CFSR may not effectively assess whether child safety is being achieved.

This is not petitioner analysis. These are ACF's own published characterizations of the program it administers. Under Section 5.3, this constitutes Primary Evidence — specifically, state-generated self-disclosure by the federal oversight authority.

Petition Domains: Domain G — Federal Oversight History & Corrective Action Response; Domain E — Outcomes, Incentives & Systemic Disparities

Petition F-Codes: F5 — Repeat Findings Not Corrected (primary);

F13 — Policy–Practice Implementation Gap

7.1.3 THE PIP SUSPENSION MECHANISM AND ITS IMPLICATIONS FOR IOWA

(Threshold 1 — Documented Finding; Threshold 2 — Convergent Indicator)

In response to the acknowledged 25-year decline, ACF did not increase oversight requirements, mandate independent verification, or impose enforceable corrective action with outcome-based metrics. Instead, TB-14 (A5-TB-14):

- Creates an opt-in pilot excusing states "from the PIP development and measurement process outlined in Technical Bulletin 13A." (A5-TB-13A)
- Permits states with approved PIPs to request renegotiation "regardless of

where the state is in implementing those plans."

- Reorients all PIP measurement toward the "A Home for Every Child" goal framework, with metrics not yet defined at time of TB-14's publication.
- Specifies no deadline for state opt-in.
- Does not require independent verification of state-reported progress.

Cross-reference: R4D-37 (A5-R4D-37, p.11) states "significant financial withholdings are associated with failure to make the identified progress."

TB-14 suspends the measurement framework against which that withholding determination would be made.

Iowa's Four-Cycle Performance Record:

Round 1 (2003–2004): Non-conformity findings. PIP required.

Commitment: "Documentation and Streamlining."

Response: "We are not in a position to add caseworkers." (R1 PIP, p.12)

Round 2 (2010–2011): Data found "invalid and non-representative." PIP required.

Commitment: Rebuild data infrastructure.

Outcome: "Some useful information was 'lost.'" (R2 Assessment, p.27)

Round 3 (2018–2019): Failed 100% of performance outcomes.

Maltreatment in care: +57.7% (R4D-42 / A5-R4D-42, p.23)

Recurrence: +30.9% (R4D-42, p.25)

Workforce: -13% | Caseloads: +19%

PIP required. Commitments: Safe 4 Home and SDM tools.

Round 4 SWDI (R4D-21 / A5-R4D-21, March 2026):

Recurrence of maltreatment: WORSE than national

Permanency in 12 months: WORSE than national

All other indicators: "No different"

Under TB-14, Iowa may opt into the PIP flexibility pilot and exit the measurement framework that would otherwise govern its Round 4 accountability obligations.

Convergent Indicator (Threshold 2):

The structural limitations in Sections 7.1.4 and 7.1.5 — state-controlled evaluative inputs, optional stakeholder verification, RSP metric shielding, and conclude-first narrative requirements — combined with TB-14's PIP suspension create conditions under which Iowa's documented persistent deficiencies could

complete a federal review cycle without generating either a non-conformity determination or a mandatory corrective action obligation with enforceable metrics.

This is not an assertion that Iowa will exploit this pathway. It is an observation that the pathway exists, is documented in federal guidance, and is structurally available to a state with Iowa's performance record. This structural availability is directly relevant to the case for independent state audit jurisdiction under Iowa Code § 11 — which does not depend on whether the federal pathway is exercised, only on whether the federal mechanism is structurally adequate to guarantee independent accountability.

Petition Domains: Domain G; Domain A; Domain E

Petition F-Codes: F5 (primary); F13; F7

7.1.4 STRUCTURAL INTEGRITY CONCERNS — ROUND 4 FRAMEWORK DESIGN

(Threshold 1 and Threshold 2 — multiple supporting federal documents)

Each finding is supported by direct quotation from the applicable R4D source.

A. Self-Assessment — State Controls Evaluative Inputs

Source documents: R4D-37 (A5-R4D-37); R4D-01 (A5-R4D-01); R4D-20 (A5-R4D-20)

Petition Domains: Domain G; Domain C

Petition F-Codes: F13; F5

"The statewide assessment is prepared by staff of the state child welfare agency in partnership with individuals the agency is required to consult."
(R4D-37, p.22; confirmed in R4D-01, p.2)

"State-Led Reviews... offer states the opportunity to conduct their own case reviews and case-related interviews using the Round 4 federal OSRI and submit the results to the CB."
(R4D-01, p.2)

The entity being evaluated participates in producing the evaluative inputs on which the federal conformity determination is based.

B. Oversight Independence — Secondary Oversight ≠ Independent Verification

Source documents: R4D-01 (A5-R4D-01); R4D-39 (A5-R4D-39)

Petition Domain: Domain G

Petition F-Codes: F12; F11

"Throughout State-Led Reviews, the CB CFSR team conducts Secondary Oversight to ensure that QA staff and reviewers understand key practice concerns to be reported in the OSRI and ensure the accurate rating and applicability of OSRI items."

(R4D-01, p.4)

"Stakeholder interviews may not be required to collect information about every systemic factor."

(R4D-39, p.1)

Federal oversight focuses on reviewer calibration, not independent fact verification. Stakeholder verification is explicitly optional.

C. Institutional Capture — State Controls Federal Reviewer Environment

Source documents: R4D-12 (A5-R4D-12); R4D-26 (A5-R4D-26)

Petition Domains: Domain G; Domain F

Petition F-Codes: F12; F11

"In CB-Led Reviews... the state assigns a CFSR Coordinator and a group of Local Site Coordinators to manage the logistical arrangements... workspace accommodations... private interview rooms; and nearby eateries for meals."

(R4D-12, p.2–3)

"Arrange for ordering and pick up lunch Monday–Thursday."

(R4D-12, p.7)

The state's logistical control of the review environment eliminates the adversarial separation standard required in independent audit methodology.

D. Metric Reliability — RSP Explicitly Disconnected from Observed Outcomes

Source document: R4D-05 (A5-R4D-05)

Petition Domains: Domain H; Domain E

Petition F-Codes: F4 (primary); F13

"RSP has no meaning relative to the state's observed performance... Observed performance describes how a state performed on a given indicator, without any adjustments."

(R4D-05, SWDI FAQ, p.6)

"A state's RSP cannot be compared to its observed performance."

(R4D-05, p.6)

A state may achieve a positive RSP rating while its raw maltreatment rate worsens. Iowa's +57.7% increase in Round 3 occurred under this metric framework.

E. Narrative Engineering — Conclude-First Rationale Structure

Source document: R4D-41 (A5-R4D-41)

Petition Domains: Domain G; Domain F

Petition F-Codes: F4; F13

"Rationale Statements should not simply recite the events of a case. Rather, they should distill and assess the agency practice and explain why that practice demonstrated the criteria for the given rating."

(R4D-41, p.10)

Required format: "Item X is rated X because..."

(R4D-41, p.9)

Interpretive framing is mandated over evidentiary recitation — structurally inconsistent with independent audit methodology.

F. "Concerted Efforts" Standard — Effort Substitutes for Outcome

Source documents: R4D-37 (A5-R4D-37); R4D-11 (A5-R4D-11)

Petition Domains: Domain E; Domain C

Petition F-Code: F13

"Concerted efforts" appears 28 times in R4D-37 as the defining Strength standard. Services offered but not accessed may still constitute a Strength.

(R4D-11, p.58)

G. Case Elimination — Sampling Integrity Risk

Source documents: R4D-01 (A5-R4D-01); R4D-35 (A5-R4D-35); R4D-37 (A5-R4D-37)

Petition Domains: Domain C; Domain H

Petition F-Codes: F3; F13

Cases with "unwilling or unavailable" participants may be removed with no defined minimum engagement standard before exclusion. (R4D-01, p.12; R4D-37, p.410)

Sampling frames are built at 4–6x review sample size to accommodate eliminations. Cases involving caregivers, caseworkers, or placement providers under active legal proceedings or agency investigation are structurally among

the most likely to produce unavailable participants — and therefore among the most eligible for removal from the sample. Adversarial cases are structurally among the most eligible for removal.

7.1.5 MEASUREMENT RELIABILITY — CURRENT SWDI DATA

(Threshold 1 — Documented Finding)

SWDI Workbook (R4D-21 / A5-R4D-21, March 2026):

Recurrence of Maltreatment: WORSE than national

Permanency in 12 Months (Entries): WORSE than national

All remaining indicators: "No different"

Round 3 National Performance Data (R4D-42 / A5-R4D-42):

Maltreatment in Care: +57.7% (FY12/13: 16.31 → FY19: 25.72)

Recurrence: +30.9% (FY12/13: 11.2% → FY19: 14.7%)

Permanency 12 months: -11.3%

The full data trajectory shows no improvement in Iowa's two worst metrics across the R3→R4 transition period. Both datasets are federally generated and federally published — neither relying on state self-reporting.

Under TB-14 (A5-TB-14), Iowa may opt out of the PIP measurement framework that would have held these figures as the accountability standard for Round 4 corrective action.

Petition Domains: Domain E; Domain H

Petition F-Code: F5 (primary)

7.1.6 EXECUTIVE ORDER ALIGNMENT ARGUMENT

(EO-14359 and EO-14379)

This submission's request for independent state audit jurisdiction under Iowa Code § 11 is structurally consistent with — not in opposition to — two active federal executive directives.

EO-14359 — "Fostering the Future" (A5-EO-14359, November 13, 2025)

EO-14359 directed ACF to improve "collection, publication, utility, and transparency of State-level child welfare data" and to "expand and expedite child welfare data publication." TB-14 was issued as "the first phase of delivering on this call to action."

Iowa Code § 11 audit jurisdiction is consistent with EO-14359 on three grounds:

(a) Iowa's existing state data contains documented integrity concerns identified through independent analysis prior to this submission:

Attachment A21 (KinderTrack — 286 unlinked parent-child records; data system "not designed for analysis") and Attachment A43 (DHS response to Senator Ernst, June 15, 2022, Log #F22-081 — three verifiable impossible case records consistent with the data integrity failures documented in A21). Independent state audit produces the data transparency EO-14359 calls for.

(b) ACF acknowledges in TB-14 that CFSR data "appear inconsistent with what many believe to be real-world improvements in child welfare practice." Independent state audit provides the verification layer that closes this acknowledged gap specifically for Iowa.

(c) TB-14's PIP flexibility pilot reduces federal accountability at precisely the moment Iowa's Round 4 SWDI data shows continued underperformance. Iowa Code § 11 audit jurisdiction fills the gap TB-14 creates.

The request is not that the federal process be overridden. The request is that Iowa Code § 11 authority be exercised to provide the independent data verification that the federal process — by TB-14's own admission — cannot presently guarantee for Iowa. This is consistent with EO-14359's stated goals.

EO-14379 — "Great American Recovery Initiative" (A5-EO-14379, January 2026)

EO-14379 calls for improved coordination between federal agencies on Substance Use Disorder (SUD) treatment and child welfare outcomes, expanded access to medications for opioid use disorder (MOUD), and family preservation as an explicit policy goal alongside SUD treatment.

Iowa Code § 11 audit jurisdiction is consistent with EO-14379 because Iowa presents a documented structural gap at the precise intersection this order addresses:

(a) Iowa's dominant child removal driver is methamphetamine, not opioids. EO-14379's MOUD focus (buprenorphine, methadone, naltrexone) addresses opioid-pathway treatment for which no equivalent evidence-based pharmacological framework exists for methamphetamine. Iowa's child welfare removal profile therefore falls outside the primary intervention

framework EO-14379 establishes.

(b) Iowa's CAPTA FFY2026 Grant (A11) documents a 55% failure rate in completing federally mandated Safe Plans of Care for substance-affected infants (p.7) — the frontline consequence of this treatment gap.

(c) The Crossroads Behavioral Health Special Investigation (A26) documents \$167,716 in questioned costs across IPN, SOR, and ARPA federal substance use treatment grants — with explicit contractor statement that funds were used to "keep the business open" rather than deliver mandated services. DHHS performed no subrecipient monitoring. (AOS, p.18)

(d) The AECF assessment (A18) documented parental substance abuse removals increasing 47% (1,424 → 2,093) — the same period Iowa's CFSR Round 3 produced its worst-ever performance outcomes.

Independent state audit under Iowa Code § 11 provides the state-level mechanism to document and address Iowa's methamphetamine-specific child welfare gap — the gap EO-14379 targets at the federal level but cannot resolve for Iowa's specific substance profile without state-level data transparency.

Iowa Code § 11 audit jurisdiction therefore advances both the data transparency goals of EO-14359 and the SUD-child welfare coordination goals of EO-14379.

Petition Domains: Domain A; Domain C; Domain E; Domain G; Domain H

Petition F-Codes: F1; F5; F7; F8; F13

7.1.7 CONGRESSIONAL ENGAGEMENT RECORD

Initial outreach (2022):

Petitioner correspondence with Senator Grassley and Senator Ernst.

DHS response to Senator Ernst produced June 15, 2022 (Log #F22-081), filed as Attachment A43. Response contains three verifiable impossible case records consistent with data integrity failures documented in A21.

The DHS response is itself primary evidence of Domain H failure at the legislative liaison level.

Current engagement (May 27, 2026):

Direct meeting with Garrett Arbuckle, Deputy Chief of Staff, Office of Senator Charles Grassley (R-IA); primary staff contact, Senate Caucus on Foster Youth. Agenda: Round 4 structural integrity concerns; TB-14 PIP

suspension implications for Iowa; Senate Finance Committee inquiry request to ACF regarding RSP/OP divergence and Iowa SWDI data.

Status: Active — outcome to be documented upon resolution.

Cross-reference: Section 16; Attachment A39; Attachment A43.

PURPOSE OF SECTION 7

Establishes that the current federal child welfare review mechanism contains documented structural design limitations — acknowledged in part by ACF itself in TB-14 — that are insufficient to independently detect and mandate correction of the persistent deficiencies documented across 20+ years in this submission.

The TB-14 PIP suspension mechanism eliminates the primary federal corrective action tool available for states with Iowa's performance record, at the moment Iowa's own SWDI data shows continued underperformance.

Two active executive directives — EO-14359 and EO-14379 — independently support the data transparency and SUD-child welfare coordination outcomes that Iowa Code § 11 audit jurisdiction would produce. The audit request does not conflict with the federal framework. It fills the accountability gap the federal framework has explicitly created.

Together, these conditions — pre-existing structural limitations, the active removal of accountability requirements, and the documented Iowa-specific data integrity and SUD treatment gaps — strengthen the case for independent state audit jurisdiction under Iowa Code § 11 as a necessary, non-duplicative, and constitutionally grounded accountability layer.

End of Section 7 — CFSR Round 4 Structural Integrity Analysis

Section 7 | Version 3.0 | May 27, 2026

AI assistance disclosure: See Section 5.8.

AI assistance was used materially in the preparation of this document. That assistance does not constitute independent verification of any factual claim.